



NEPA-PRO LLC

★ Veteran Owned & Operated · NEPA Region

TCPA Compliance & Internal Do Not Call Policy

V1.0 · EFFECTIVE MAY 2026 · OWNER: OPERATIONS

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1. What is TCPA

The Telephone Consumer Protection Act (TCPA, 47 U.S.C. § 227) is the federal law governing telemarketing and unsolicited commercial calls in the United States. It is enforced by the FCC and FTC, and includes a private right of action — meaning **individuals can sue you directly**.

Why this matters to NEPA-PRO: we make outbound B2B calls from a list. Even though we are calling businesses (not consumers), the moment a wireless number is involved or a phone is registered as residential, TCPA applies. Treat every number as if it were protected.

2. Calling hours

Federal rules prohibit telemarketing calls before 8:00 AM or after 9:00 PM in the *recipient's* local time zone — not yours. Pennsylvania state law mirrors the federal rule.

Operational rule: NEPA-PRO calls only between **9:00 AM and 7:00 PM local time**, Monday–Saturday. We do not call on Sundays or federal holidays. This is stricter than the law requires; we set it that way for tone, not just compliance.

3. Required identification

Federal law (16 CFR § 310.4(d)) requires telemarketers to disclose, promptly and clearly, four things at the start of every outbound sales call:

1. The caller's identity (your name)
2. That the purpose of the call is to sell goods or services
3. The nature of those goods or services
4. The seller's identity (NEPA-PRO LLC)

YOU "Hi, this is **[your first name]** calling from **NEPA-PRO**, a Northeast PA construction and tech company. I'm reaching out today because we build websites and mobile apps for [their industry] businesses — do you have 30 seconds?"

That single sentence covers all four requirements. Use it verbatim. Variations are fine; omissions are not.

4. Internal Do Not Call list

Federal law requires every business making telemarketing calls to maintain its own internal DNC list and to honor opt-out requests for at least **5 years**. NEPA-PRO maintains this list inside the dialer (Leads → Pipeline → Do Not Call card, or My Card → Do Not Call List).

When to add a number:

- ☐ Anyone who says "do not call me again," "remove me from your list," "stop calling," or any equivalent
- ☐ Anyone who says they have a no-soliciting policy
- ☐ Wrong numbers (so we don't redial)
- ☐ Numbers that ring through to a known TCPA litigator (see Section 7)
- ☐ Confirmed business closures

Hard rule: if a request to be removed comes in via any channel — phone, email, text, voicemail — that number is added to DNC the same day. Not "next sync." Same day.

5. National DNC Registry

The FTC's National Do Not Call Registry (donotcall.gov) is a separate list of numbers that consumers have asked never to receive telemarketing calls on. As a B2B-focused operation calling business landlines, our exposure is lower — but anyone using a wireless line as their business line is still on the registry.

Once business operations grow, NEPA-PRO will subscribe to the registry directly and scrub our lead lists against it before each outbound campaign. Until then, we err on the side of internal-list hygiene and treat every "remove me" request as binding for 5+ years.

6. Honoring opt-outs

When someone asks to be removed:

1. **Acknowledge it on the call.** "Of course — I've removed you from our list. You won't hear from us again. Have a good day."
2. **Mark Do Not Call** in the dialer immediately, while still on the call. Pick the appropriate reason in the action sheet.
3. **Do not argue, do not pitch, do not offer discounts.** Comply, end the call politely, move on.
4. If they call us back later wanting service, they have to opt back in. Do not assume.

The dialer's DNC system is designed to make compliance the path of least resistance. The "Mark Do Not Call" button is one tap away from any lead or contact, and dialing a flagged number triggers a hard-stop warning before it connects.

7. Litigator screening

A small population of individuals make a hobby — and sometimes a livelihood — of provoking TCPA violations to extract settlements. Common patterns:

- They press hard on technical details: "Are you recording this call? What's your DNC policy? Where can I see your written procedure?"
- They steer toward an unambiguous violation: asking you to call them again to confirm something, then claiming they didn't consent.
- They file complaints in clusters under a small handful of names and PO boxes.

If a call feels like a setup: politely thank them for their time, mark Do Not Call with reason "Litigator / TCPA risk," and end the call. Do not engage further. Do not call back.

8. Recording disclosure

Pennsylvania is a **two-party consent state**. If we ever record a call for training or QA, both parties must agree before the recording starts. Until NEPA-PRO formally rolls out call recording with a disclosure script, do not record any sales calls — phone, voicemail, or otherwise.

9. Penalties & enforcement

\$500

per call · negligent violation

\$1,500

per call · willful violation

These are statutory damages — they apply per call, not per claimant. A litigator who receives 8 calls from a non-compliant operation can collect \$4,000–\$12,000 in a single complaint. Keep the dialer's DNC list clean and current; it is our single best defense.

Quick reference

SITUATION	ACTION
Calling hours	9 AM – 7 PM local time, Mon–Sat only
Opens with "what is this about?"	Run the 4-part disclosure (Section 3)
"Take me off your list"	Mark DNC same call, no pitch, polite exit
Wrong number	Mark DNC with reason "Wrong number"
Voicemail	Use Voicemail Script doc; never claim to be calling back
Caller asks if recorded	"No, this is not being recorded."
Caller asks for written policy	"I can email it — what's the best address?" Send the public-facing one-pager.